**UNITED STATES DISTRICT COURT**
**WESTERN DISTRICT OF NEW YORK**

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| UNITED STATES OF AMERICA, | No. 6:18-CR-06018-DGL-MWP |
| v. | Hon. David G. Larimer |
| JEFFREY BERNECKY, | **CERTIFICATION OF JEFFREY BERNECKY** |
| Defendant. | **(28 U.S.C. § 1746)** |

Jeffrey Bernecky declares as follows:

## I. Background

1. I am the defendant in this case. I make this declaration in support of my motion to clarify or modify the conditions of my supervised release and for appointment of counsel. I have personal knowledge of the facts stated here, except where I say otherwise.

2. On June 12, 2018, this Court sentenced me to 120 months in prison, to be followed by ten years of supervised release. At sentencing I was represented by Mark D. Hosken of the Federal Public Defender's Office, who was appointed to represent me. **[Confirm that Mr. Hosken was appointed, not privately retained.]**

3. Both of my convictions are for child-pornography offenses: possession in this case, and possession and distribution in my earlier case, No. 6:11-CR-06045. Neither conviction involved physical contact with a child, and I have never been charged with any offense involving physical contact with a child. **[Confirm.]**

4. My term of supervised release began on July 30, 2026. I live in Rochester, New York. I have been employed **[full-time]** since **[month and year]**.

5. Since my supervision began, I have followed every instruction my probation officer and my treatment providers have given me, including the instructions described in this declaration, which I am asking the Court to clarify. **[Confirm. If there is anything Probation or treatment staff could point to as not following an instruction, tell us before you sign.]**

## II. Intake and Standard Condition 12

6. On or about **[July 30, 2026]**, at **[the Probation Office in Rochester]**, **[my probation officer, name]** went over my conditions of supervision with me and had me sign **[describe the document, for example a form acknowledging the conditions of supervision]**. **[Say whether you were given a copy. If you have it, it will be attached as Exhibit E.]**

7. The conditions I was required to sign included Standard Condition 12 in the form printed on page 4 of my Judgment: "If the probation officer determines that you pose a risk to another person (including an organization), the probation officer may require you to notify the person about the risk and you must comply with that instruction." **[Confirm the wording matches. If you do not have a copy, this will say "to the best of my recollection."]**

8. No one at the Probation Office showed me or told me about the replacement language in the Amended Standing Order attached as Exhibit D, and no one told me that Standard Condition 12 had been changed in 2019. **[Confirm.]**

9. I have never received notice of, been asked to attend, or attended any proceeding at which this Court considered whether I pose a risk of committing further crimes against another person. No one has told me that the Court has made that determination. **[If you have checked the docket in this case, add: "I reviewed the docket in this case on (date) and found no order making that determination."]**

10. Exhibit D is a true copy of the Amended Standing Order entered by this Court on March 22, 2019, *In re United States v. Boles* (Geraci, C.J.). **[Say where the copy came from, for example the Court's website or the Clerk's Office.]**

## III. The Treatment Provider and Its Documents

11. **[My probation officer referred me to]** R.K.K.S. Mental Health Counseling PLLC for the sex-offense-specific treatment and mental-health treatment required by my Judgment. **[Confirm who chose R.K.K.S. and how.]** I began treatment there on or about **[date]**.

12. On July 30, 2026, I signed the Authorization to Release Confidential Information attached as Exhibit B. It authorizes "RKKS Forensic Counseling" to release information about my treatment to the United States Probation Office for the Western District of New York. **[Say where you signed it and who gave it to you: Probation or R.K.K.S.]** Exhibit B is a true copy of the form I signed.

13. On August 19, 2026, as part of my intake at R.K.K.S., I signed the three-page Treatment Contract attached as Exhibit A. **[Say who gave it to you, and whether anyone told you that you had to sign it to be accepted into treatment or that refusing would be reported to Probation. Give the words used as best you remember.]** Exhibit A is a true copy of the Treatment Contract I signed.

## IV. Instructions About Sexual Partners and Online Profiles

14. The Treatment Contract requires me to disclose my offense history in full, and to provide treatment staff "acceptable proof of informed consent," before engaging in a sexual relationship. Ex. A at 3. No one at R.K.K.S. has explained to me what would count as acceptable proof. **[Confirm, or describe what you were told. If anyone has also told you that you need your therapist's permission before a sexual relationship, say who, when, and what was said.]**

15. On or about **[date]**, **[name and role: therapist, probation officer, or both]** told me that if I use an adult dating or social-media application, such as Grindr, my profile must display my conviction. **[Confirm who said it, when, whether it was spoken or written, and whether it covers only dating apps or every social-media profile.]**

16. Since my release I have gone to work and come home. I have not pursued a dating or sexual relationship. The reason is the requirements described in paragraphs 14 and 15: any relationship would have to begin with a full account of my offense history to the other person and proof of that person's consent to treatment staff, and any dating profile would have to announce my conviction. **[Confirm, and add a sentence in your own words about why this has kept you from pursuing a relationship.]**

## V. Instructions About Online Communication

17. I enjoy playing video games. Until the instruction described in paragraphs 19 and 20, I played games on my phone, including games that let players exchange typed messages. I played them only on my phone, which has the Probation Office's monitoring software installed. **[Confirm. Naming the games is optional.]**

18. Before **[date of the instruction in paragraph 19]**, I exchanged typed messages in these games with other players whom I did not know personally. In those conversations I stated that I would not speak with anyone under 18. **[If true, add: "To my knowledge, every person I exchanged messages with was an adult," and say how you knew.]**

19. On or about **[date]**, my probation officer, **[name]**, told me that she had noticed that I had been speaking with people in online games, and that I needed to stop. I had not told her about those conversations. **[Confirm.]**

20. She told me that I may not speak with anyone while playing online games, because there is no way to verify their age or identity, and that I may not speak with anyone I do not personally know. She told me I may speak with people I know in real life. The instruction is not limited to people under 18. It applies to adults I do not personally know. **[Confirm whether she said adults were included or whether that is how you understood "anyone." Confirm whether the instruction covered only online games or all online communication, such as social media, messaging apps, and forums.]**

21. No one has told me that any person I exchanged messages with in an online game was under 18. **[Confirm.]**

22. No one told me to stop playing video games. But after my probation officer gave me that instruction, I stopped playing online games altogether, and I have not played since. I have not spoken with anyone in an online game since then. **[If also true, add: "I have not communicated online with anyone I do not personally know since then."]**

## VI. The 17-and-Older Event

23. On or about **[date]**, I attended **[describe the event]** in **[place]**. Admission was limited to people 17 and older. **[Say how the age limit was enforced, for example an ID check at the door. If true, add: "I did not have contact with anyone I knew or believed to be under 18 at the event."]**

24. Afterward, **[name and role at R.K.K.S.]** told me that I should have told treatment staff about the event before I went, because an event with that age limit had "potential for pornographic material." **[Say whether there was any sexual material at the event.]**

25. My probation officer then told me that I should not have gone, because minors could possibly have been there, including minors who could have snuck in without my knowing. I said that a grocery store carries a much greater chance of being near minors than an event like that. She answered, "a judge wouldn't see it that way." **[Give the date, say how Probation learned of the event, and say whether "snuck in" was her exact wording or the substance of what she said.]**

## VII. Family Gatherings

26. I have no biological or adopted children.

27. After this Court sentenced me, and while I was in prison, my sister had **[number]** children. They are now **[ages]**.

28. My parents are not together. My mother, my stepfather, and my father know about my convictions. **[Confirm whether your sister knows.]**

29. My family gathers for Thanksgiving, Christmas, and **[other holidays or occasions]** at **[whose home or homes]**. My sister and her children are not expected at the gatherings I attend. But family holidays are not planned to the minute, and my sister could arrive with her children without notice while I am there. **[Confirm, and name any other children, such as cousins' children, who could be present.]**

30. I have not been at a family holiday gathering since **[year]**. **[Confirm.]**

31. **[I have / I have not]** asked my probation officer for permission to attend family gatherings where my sister's children are present. **[If you asked, say when and what she said.]**

32. If my sister arrives with her children while I am at a family gathering, I will not be alone with any child, and my mother, my stepfather, or my father will be present. **[Confirm these terms work for you.]**

## VIII. Treatment Participation and Statements by Treatment Staff

33. I have attended every scheduled treatment session since I began at R.K.K.S. **[Confirm. List any session you missed or were late to, and why.]** I will continue to attend every scheduled session, complete every assignment I am given, and discuss in treatment the conduct for which I was convicted.

34. During an individual session at R.K.K.S. in the week of **[September 28, 2026]**, my therapist, **[name]**, told me that sex offenders are not allowed to have or take Viagra, because it increases sex drive. She said that for Viagra prescriptions, a search of the sex-offender registry is run to make sure the person is not on it. I asked about people who have a real medical need, such as trouble achieving an erection in a healthy adult relationship. She said that we still are not allowed. The subject did not come up because of anything about me. **[Confirm.]**

## IX. The Monitoring Program

35. On or about **[date]**, I received the Computer Monitoring Program Participant Agreement attached as Exhibit C from **[my probation officer, name]**. **[Say whether you signed it and on what date.]** Exhibit C is a true copy of that agreement.

36. Monitoring software was installed on my phone, a **[make and model]**, on or about **[date]**, by **[who installed it or walked you through installing it, for example the monitoring company]**. **[Describe the steps briefly.]**

37. I was told that the monitoring software can take a full screenshot of my phone's screen at any time. **[Say who told you and when.]**

38. No one from the Probation Office or the monitoring company has told me that anything on my phone is protected from viewing, or that any procedure exists to prevent Probation from viewing lawful material, such as my typed conversations with other players in a game, my communications with this Court, or my drafts of legal papers. No one has told me how the monitoring is designed to avoid reading privileged information. I have not been given any written description of how the monitoring handles any of that material. **[Confirm. If you were told anything on this subject, say who, when, and what.]**

39. I am representing myself on this motion **[and in a pending proceeding in Monroe County Court concerning my sex-offender risk level]**. I prepare my legal papers, including this motion, on **[name each device]**, which **[is / are]** monitored. **[Be exact. Probation will read this paragraph.]**

## X. Counsel

40. I cannot afford to hire a lawyer to represent me on this motion. I will submit a CJA Form 23 financial affidavit. **[Confirm.]**

I declare under penalty of perjury that the foregoing is true and correct.

Executed on October ___, 2026, at Rochester, New York.

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Jeffrey Bernecky
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